

STATE OF NEW YORK

7011--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 18, 2025

Introduced by M. of A. TAPIA, SHIMSKY, EPSTEIN, SAYEGH, BUTTENSCHON, SCHIAVONI, SIMONE, ROSENTHAL, LEVENBERG, DINOWITZ, HEVESI, LUPARDO, GRIFFIN, RAJKUMAR, BRABENEC, McDONOUGH, SMULLEN, SLATER, LEMONDES, DeSTEFANO, K. BROWN, PALMESANO, SEAWRIGHT, REYES, MAHER, KASSAY, LUNSFORD, SEMPOLINSKI, McDONALD, SANTABARBARA, WEPRIN, GIGLIO -- Multi-Sponsored by -- M. of A. WALSH -- read once and referred to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to allowing individuals to register in the "donate life registry" through mandatory electronic personal income tax filings

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Paragraph (a) of subdivision 5 of section 4310 of the public health law, as amended by section 2 of chapter 662 of the laws of 2024, is amended to read as follows:

(a) Such organ, eye and tissue registration of consent to make an anatomical gift can be made through: (i) indication made on the application or renewal form of a driver's license, (ii) indication made on a non-driver identification card application or renewal form, (iii) indication made on a voter registration form pursuant to subdivision five of section 5-210 of the election law, (iv) indication made on the application for, or manual renewal application by an account holder of, health care coverage offered through the state health benefit exchange, (v) enrollment through the donate life registry website, (vi) paper enrollment submitted to the donate life registry, (vii) indication made on the application or renewal form of a hunting, fishing or trapping license issued pursuant to title seven of article eleven of the environmental conservation law, (viii) indication made on transactions administered by the office of temporary and disability assistance through the mybenefits.ny.gov website, or any such successor website; (ix) indication made

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 on applications, renewals or related transactions for college financial
2 aid, grants, or scholarships offered or administered through any website
3 maintained by the higher education services corporation; (x) indication
4 made on transactions conducted through an individual's electronic health
5 records; ~~or~~ (xi) indication made on any personal income tax document
6 that is subject to mandatory electronic filing in accordance with the
7 provisions of section twenty-nine of the tax law; or (xii) through any
8 other method identified by the commissioner. The department shall estab-
9 lish a means by which to register the consent given by individuals who
10 are sixteen or seventeen years of age in the donate life registry, and
11 shall make registration available by any of the methods provided in
12 subparagraphs (i), (ii), (iii), (iv), (v), (vi), (vii), (viii), (ix),
13 (x) ~~and~~, (xi) and (xii) of this paragraph.

14 § 2. Paragraph (a) of subdivision 5 of section 4310 of the public
15 health law, as amended by section 3 of chapter 662 of the laws of 2024,
16 is amended to read as follows:

17 (a) Such organ, eye and tissue registration of consent to make an
18 anatomical gift can be made through: (i) indication made on the applica-
19 tion or renewal form of a driver's license, (ii) indication made on a
20 non-driver identification card application or renewal form, (iii) indi-
21 cation made on a voter registration form pursuant to subdivision five of
22 section 5-210 of the election law, (iv) indication made on the applica-
23 tion for, or manual renewal application by an account holder of, health
24 care coverage offered through the NY State of Health, the official
25 Health Plan Marketplace, (v) enrollment through the donate life registry
26 website, (vi) paper enrollment submitted to the donate life registry,
27 (vii) indication made on the application or renewal form of a hunting,
28 fishing or trapping license issued pursuant to title seven of article
29 eleven of the environmental conservation law, (viii) indication made on
30 transactions administered by the office of temporary and disability
31 assistance through the mybenefits.ny.gov website, or any such successor
32 website; (ix) indication made on applications, renewals or related tran-
33 sactions for college financial aid, grants, or scholarships offered or
34 administered through any website maintained by the higher education
35 services corporation; (x) indication made by an insured and/or applicant
36 for insurance during enrollments, renewals, and the initial process for
37 an insured in setting up an online member service portal with their
38 insurer for accident and health insurance policies and contracts issued
39 pursuant to article forty-four of this chapter, article forty-two of the
40 insurance law, or article forty-three of the insurance law, excepting
41 renewals made through the NY State of Health, the official Health Plan
42 Marketplace, other than those specifically referenced in subparagraph
43 (iv) of this paragraph and paragraph (v) of subdivision one of section
44 two hundred six of this chapter; and provided, however, that nothing in
45 this section shall apply to the medical assistance program under title
46 eleven of article five of the social services law; (xi) indication made
47 on transactions conducted through an individual's electronic health
48 record; ~~or~~ (xii) indication made on any personal income tax document
49 that is subject to mandatory electronic filing in accordance with the
50 provisions of section twenty-nine of the tax law; or (xiii) through any
51 other method identified by the commissioner. The department shall estab-
52 lish a means by which to register the consent given by individuals who
53 are sixteen or seventeen years of age in the donate life registry, and
54 shall make registration available by any of the methods provided in
55 subparagraphs (i), (ii), (iii), (iv), (v), (vi), (vii), (viii), (ix),
56 (x), (xi) ~~and~~, (xii) and (xiii) of this paragraph.

§ 3. Subparagraph (i) of paragraph (b) of subdivision 5 of section 4310 of the public health law, as amended by section 4 of chapter 662 of the laws of 2024, is amended to read as follows:

(i) Where required by law for transactions described in subparagraphs (i), (ii), (iv), (vii), (viii), (ix), (x) ~~[and]~~, (xi) and (xii) of paragraph (a) of this subdivision, the commissioner shall ensure, in consultation with the head of any agency required to implement such transaction, that space is provided on any required form so that the applicant shall register or decline registration in the donate life registry for organ, eye and tissue donations under this section and that the following is stated on the form in clear and conspicuous type:

"You must fill out the following section: Would you like to be added to the Donate Life Registry? Check box for 'yes' or 'skip this question'."

§ 4. Subparagraph (i) of paragraph (b) of subdivision 5 of section 4310 of the public health law, as amended by section 5 of chapter 662 of the laws of 2024, is amended to read as follows:

(i) Where required by law for transactions described in subparagraphs (i), (ii), (iv), (vii), (viii), (ix), (x), (xi) ~~[and]~~, (xii) and (xiii) of paragraph (a) of this subdivision, the commissioner shall ensure, in consultation with the head of any agency required to implement such transaction, that space is provided on any required form so that the applicant shall register or decline registration in the donate life registry for organ, eye and tissue donations under this section and that the following is stated on the form in clear and conspicuous type:

"You must fill out the following section: Would you like to be added to the Donate Life Registry? Check box for 'yes' or 'skip this question'."

§ 5. This act shall take effect on the one hundred eightieth day after it shall have become a law; provided, however, that if sections 3 and 5 of chapter 662 of the laws of 2024 shall not have taken effect on or before such date then sections two and four of this act shall take effect on the same date and in the same manner as such sections of such chapter of the laws of 2024, takes effect. Effective immediately, the commissioner of health is authorized to take any actions necessary to implement the provisions of this act on or before its effective date.